

PHILLIP L.B. HALPERN

San Diego, California

Former Assistant United States Attorney · Op-Ed Contributor, San Diego Union-Tribune

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PROFESSIONAL SUMMARY

Distinguished federal prosecutor with a 40-year prosecutorial career, including 36 years of service in the U.S. Attorney's Office for the Southern District of California, specializing in complex white-collar fraud and official corruption cases. Tried and supervised some of the most significant public corruption, campaign finance, tax fraud, and financial crime cases in the nation's history. Author of widely noted writings on law, justice, and the rule of law, including a nationally recognized piece on the politicization of the Justice Department under Attorney General William Barr.

HONORS

Received the Department of Justice Distinguished Service Award — the Department's second-highest honor — on an unprecedented seven separate occasions.

Also received the highest award given by various federal agencies, including the Federal Bureau of Investigation, the Internal Revenue Service, U.S. Customs, and the Food and Drug Administration, among numerous other commendations over the course of a 40-year career.

MEDIA COVERAGE & COMMENTARY

Cases prosecuted by Mr. Halpern have been covered by an exceptionally broad range of national and international media outlets. Coverage has appeared in publications as varied as *The New York Times*, *The Washington Post*, *The Times of London*, and virtually every major daily newspaper in the country, as well as general-interest periodicals such as *Esquire* and *Reader's Digest*, and specialty publications including *Sports Illustrated* and *Muscle Media 2000*.

Upon retirement, Mr. Halpern authored a widely circulated op-ed in the San Diego Union-Tribune on the politicization of the Department of Justice, subsequently covered by NPR, CNN, MSNBC, and Newsweek, among other national outlets.

CAREER

Assistant United States Attorney (Senior)

U.S. Attorney's Office, Southern District of California

1984 – 2020

Served for 36 years in one of the nation's busiest federal districts, encompassing San Diego and Imperial Counties and the busiest land border crossing in the United States at San Ysidro. Selected positions held:

- Chief, Major Frauds and Special Prosecutions Section

- Senior Litigation Counsel
- Senior Legal Counsel
- Special Assistant to the U.S. Attorney — senior advisor responsible for interagency coordination, border security initiatives, and public affairs matters, including: Chair, Federal Law Enforcement Coordinating Committee; Representative, SANDAG Binational Regional Opportunities Committee; Chair, U.S. Attorney's Office Hiring Committee; Coordinator, White Collar Institute; Chair, Use of Force Protocol Committee; and Representative, Border Research & Technology Center.

REPRESENTATIVE PROSECUTIONS

- **U.S. v. Randy “Duke” Cunningham** — Largest corruption case ever brought against a sitting United States Congressman. Cunningham accepted more than \$2.4 million in bribes from defense contractors — documented on a notorious “bribe menu” — in exchange for directing federal contracts. He wept on the courthouse steps, resigned from Congress, and was sentenced to over eight years in federal prison.
- **U.S. v. Duncan D. Hunter, et al.** — One of the few successful campaign finance prosecutions of a sitting member of Congress. Hunter and his wife plundered \$250,000 in campaign funds for personal use, then weaponized a “deep state” conspiracy narrative to win re-election in 2018 — returning a soon-to-be-convicted felon to Congress. He ultimately pleaded guilty and was sentenced to federal prison.
- **U.S. v. Kyle “Dusty” Foggo, et al.** — Prosecution of the Executive Director of the CIA — the highest-ranking intelligence official ever indicted in the United States. The investigation required executing a search warrant inside CIA headquarters, in Foggo’s own office. He was convicted of steering agency contracts to a close friend in exchange for personal benefits.
- **U.S. v. Patrick Frega, et al.** — First federal corruption prosecution brought against sitting California state court judges. Attorney Patrick Frega paid more than \$100,000 in bribes to three Superior Court judges over a decade in exchange for favorable treatment in high-stakes civil cases. A novel RICO theory premised on state-law bribery was crafted to reach the defendants. All three judges were convicted.
- **U.S. v. Hilma Marie Witte, et al.** — An Indiana housewife charged with orchestrating the murders of her husband and mother-in-law by recruiting her own children to carry out the killings. The mother-in-law was killed with a crossbow; her remains were dismembered, scattered in the family garden, then transported across the country in a Coleman cooler and dumped in the Otay Mesa landfill.
- **U.S. v. Maureen O’Connor** — Tax fraud prosecution of a former San Diego Mayor. O’Connor reported over \$1 billion in gambling winnings to the IRS and lost even more, misappropriating \$2.1 million from the charitable foundation of her late husband — Bob Peterson, founder of Jack in the Box — to cover her debts. One of the rare federal prosecutions involving the criminal abuse of a charitable organization.
- **U.S. v. Jose Susumo Azano-Matsura, et al.** — First prosecution of a foreign national for making illegal contributions in a U.S. election. Mexican defense contractor Azano injected nearly \$600,000 in illegal foreign money into San Diego’s 2012 mayoral race to gain political access for a waterfront redevelopment he called “Miami West.” Convicted on 36 felony counts; sentenced to three years in federal prison.
- **U.S. v. Robert Morales** — Largest bribery case ever brought against an IRS Agent. Over a decade, Morales accepted more than \$600,000 in bribes to shield a wealthy taxpayer from audits, constructing a maze of sham corporations and laundered payments. Caught in an undercover sting agreeing to launder drug money. Sentenced to 12 years in federal prison.

- **U.S. v. Mario Saikhon** — Largest individual criminal tax prosecution in the history of the Internal Revenue Service. Imperial Valley farmer Saikhon paid hundreds of thousands in bribes to a corrupt IRS agent — the same agent at the center of the Morales case — while concealing millions in income through sham corporations and fictitious payroll schemes.
- **U.S. v. Robert Bradley, et al.** — First criminal tax case brought against a charitable foundation. Bradley, a co-founder of Metabolife International, was convicted of maintaining an internal database tracking more than 14,000 adverse health complaints — including dozens of deaths — while providing regulators only a fraction of that information. The case accelerated the nationwide ban on ephedra.
- **U.S. v. Saied Asefi Inanlou, et al.** — Prosecution of an international arms smuggling ring supplying Iran with critical F-14 fighter jet components stolen from U.S. Navy carriers, maintenance facilities, and supply depots — including gimbal assemblies for the F-14 inertial navigation system. Parts were routed through front companies via New York and London. The case triggered a congressional investigation and lasting Navy security reforms.
- **U.S. v. Francis George Christie, et al.** — First federal case involving a violation of the Presidential embargo of Libya. Christie, a Scottish national, orchestrated a scheme to export restricted oil industry technology to Libya through intermediary countries and shell entities, using false documentation to evade export controls during a period when Libya was designated a state sponsor of terrorism.
- **U.S. v. A&W; Sales Corp., et al.** — Prosecution of a food contractor responsible for a Hepatitis A outbreak sickening hundreds of grade school students across the Midwest. Company officials were charged with knowingly disregarding food safety requirements and continuing operations despite clear risks — an early landmark in the criminal prosecution of foodborne illness outbreaks affecting vulnerable populations.
- **U.S. v. Javid Naghdi** — Largest counterfeit prescription drug case prosecuted by the FDA. Naghdi, a licensed pharmacist, imported and distributed fake medications through sham wholesalers while the actual products were subpotent or of unknown origin. After jumping bail and fleeing to London, he was caught in an undercover sting and sentenced to 14 years in federal prison.
- **U.S. v. Metabolife, et al.** — Prosecution of Metabolife International, the largest seller of dietary supplements in the United States, for concealing thousands of adverse health events from the FDA while publicly insisting the product was safe. The case caused Metabolife to declare bankruptcy and cease operations, and helped accelerate the federal ban on ephedra-based supplements.
- **U.S. v. David Jenkins, et al.** — Prosecution of the largest anabolic steroid distribution network uncovered in the United States. Jenkins, a former British Olympic silver medalist, was tied to a sophisticated operation supplying performance-enhancing drugs to professional athletes across multiple sports. He pleaded guilty and served a federal prison sentence.
- **U.S. v. Richard Anthony Fitton** — First federal case involving the distribution of anabolic steroids, brought at a time when enforcement frameworks were still developing. Halpern relied on general drug and fraud statutes to reach conduct not yet covered by explicit steroid laws, helping lay the groundwork for more aggressive federal enforcement in the years that followed.
- **U.S. v. William Cambra** — First federal criminal case targeting the illegal distribution of Human Growth Hormone, brought when HGH occupied a hazy space between legitimate medicine and underground performance enhancement. The case signaled that HGH diversion from legitimate medical use would be treated as serious federal criminal conduct.

- **U.S. v. Floyd Landis** — Wire fraud prosecution of the former Tour de France winner. After being stripped of his 2006 title for doping, Landis solicited hundreds of thousands of dollars from supporters for a defense fund, falsely claiming he would use it to prove his innocence. He pleaded guilty; his eventual admission of doping implicated Lance Armstrong and triggered an international reckoning in professional cycling.
- **U.S. v. Gregory Marino (“Operation Bullpen”)** — Largest counterfeit sports memorabilia prosecution undertaken by the federal government. The scheme flooded the market with forged autographs of Babe Ruth, Mickey Mantle, Ted Williams, and dozens of other icons, supported by bogus certificates of authenticity. The investigation uncovered a nationwide conspiracy involving dozens of participants and millions of dollars in fraudulent sales.

Additional matters included significant prosecutions involving arms smuggling, procurement fraud, money laundering, environmental crime, and technology smuggling.

INTERNATIONAL RULE-OF-LAW WORK

- **Tanzania, Zanzibar, and Ghana (1993) — U.S. State Department / USIA Professional-in-Residence** — Selected as the country’s first Professional-in-Residence in Africa. Assisted the Government of Tanzania in developing anti-corruption initiatives and drafting money laundering legislation for the Attorney General of Zanzibar. Proposed reforms for the Tanzanian Supreme Court and consulted with the Government of Ghana regarding the creation of a serious fraud office.
 - **Nepal (2002)** — Provided training to public prosecutors and law enforcement officials on corruption investigations and prosecutorial practices.
 - **Philippines (2017)** — Advised law enforcement personnel on corruption investigations and anti-corruption enforcement practices.
 - **Cyprus (1998)** — Negotiated the first working agreement on money laundering between the United States and Lebanon.
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FEDERAL INTERAGENCY INITIATIVES

Founder — Border Research & Technology Center (1996)

Drafted the Memorandum of Understanding between the Department of Justice, Department of the Treasury, and the Office of National Drug Control Policy establishing the Center. Played an active role in the creation of the Designated Commuter Lane at the San Ysidro Port-of-Entry and the development of the San Diego Border Tactical Wireless Interoperability Testbed. Early proponent of the NIJ Rapid Pursuit Task Force.

ACADEMIC EXPERIENCE

Adjunct Professor of Law

University of San Diego School of Law
1988 – 1995

Lectured to upper-class and graduate law students on white-collar crime and corporate criminal responsibility, including corporate liability, multiple representation issues, and attorney-client privilege. Occasionally supervised law review articles.

Also authored a law review article for the University of Tanzania Law School on the subject of plea bargaining in the American criminal justice system.

EARLY LEGAL CAREER

Assistant Prosecutor

Hudson County Prosecutor's Office, New Jersey

1981 – 1984

Tried a wide range of serious criminal matters, including a complex, multi-defendant heroin RICO conspiracy involving multiple homicides. Also directed an undercover investigation into corruption in the Hudson County Construction and Building Department, resulting in the indictment of multiple plumbing inspectors for a long-running scheme to defraud the citizens of Hudson County.

Law Clerk to the Honorable Melvin P. Antell, Court of Appeals

New Jersey Superior Court

1978 – 1979

Prepared bench memoranda and draft appellate opinions for three-judge panels.

EDUCATION

Cambridge University

D. Crim. (Cantab), Criminology — 1981

Rutgers School of Law, Camden

J.D., with honors — 1978

Hamilton College

B.A., cum laude — 1975 · Four-year starter, varsity soccer

BAR ADMISSIONS

California · New York · New Jersey

PERSONAL

Born in Rockville Centre, New York. A competitive cyclist (competing at distances up to and over 500 miles) and former distance runner (sub-2:40 marathoner). Interests include single malt Scotch whisky, wine, woodworking, koi keeping, football (soccer), and travel. Married to Marcia Wierda Halpern; father of three sons — P. Griffin Halpern (Ane), Travis F.B. Halpern (Rachel), and Alec B.W. Halpern (Melissa) — and grandfather to Kliff Halpern-Basurko and Arlo Hendrix Halpern.

In 2023, underwent an allogeneic stem cell transplant at Dana-Farber Cancer Institute / Brigham and Women's Hospital following a diagnosis of blood cancer. Suffered a relapse and was subsequently diagnosed with Acute Myeloid Leukemia (AML). Underwent a second stem cell transplant at UCSD Medical Center in November 2024. Currently in remission. This journey has been chronicled in a public journal (CaringBridge) and in several op-eds published in the San Diego Union-Tribune.